



CITY ENGINEER'S OFFICE
2101 O'Neil Avenue
Cheyenne, Wyoming 82001

A COMMUNITY OF CHOICE

MEMO

TO: Honorable Mayor Patrick Collins, City of Cheyenne
City Council Members

FROM: Cassie L. Pickett, PE, Engineering Manager

DATE: April 17, 2024

SUBJECT: Dutch Brothers - Improvement Agreement

Purpose of Project:

This project is the private development of land located at the southwest corner of Pershing Blvd and McCann Ave for the purpose of a Dutch Brothers.

Reason for Contract Modification:

This agreement was the result of the Dutch Brothers Development Traffic Impact Study noting the need for a right turn lane on Pershing. Dutch Brothers requested to submit cash-in-lieu rather than building the turn lane. This is represented within the referenced agreement.

Estimated Cost:

The total contract amount is \$70,500.00. The funding location will be GL#001-00-0000-20-00613. The Engineer's Department has reviewed the request and respectfully recommends approval of the requested Public Improvements Agreement.

Contract No. _____

IMPROVEMENTS AGREEMENT

THIS AGREEMENT made and entered into this day of _____, 2024, by and between DB Cheyenne, LLC, a Colorado limited liability company (the "Owner"), Elevations Credit Union (the "Holder of a Deed of Trust"), and the City of Cheyenne, a municipal corporation existing under the laws of the State of Wyoming("City").

WITNESSETH:

WHEREAS, "Cash-in-lieu" shall mean those payments made by Owner in advance pursuant to UDC Sections 4.1.5.b.6 and 4.1.5.b.7 to satisfy in full Owner's, Holder of a Deed of Trust, or the Owner obligations with respect to certain specified Public Improvements as set forth herein.

WHEREAS, the Owner has made proper application and supporting document(s) for request (Exemption from Platting OR Site Development Plan), Engineering Plan Review (PUDC) Number PUDC-23-75 (the "Case") for the property described in the Case (the "Property");

WHEREAS, as a condition of approval of the Case, the Owner is obligated to enter into an agreement with the City that provides that the Owner shall either construct certain public improvements set forth on **Exhibit A** attached hereto and incorporated herein (collective, the "Improvements") or provide a cash-in-lieu Payments of the same (the "Guarantee");

WHEREAS, Cashin-lieu Amounts and Financial Security for Public Improvements. Upon Owner's advance payment of Owner's proportionate fair share of Public Improvements in accordance with UDC Sections 4.1.5.b.6 and 4.1.5.b.7, which payment amounts (the "Cash-in-lieu Amounts") shall be as specified in **Exhibit B**, Owner's financial responsibility for such scheduled Public Improvements shall be deemed permanently satisfied with respect to construction on the Property. The parties agree that the cash-in-lieu Amounts may be utilized by the City for construction of Public Improvements to the area with no limitation on time of completion, except as otherwise specified or required under existing statute, law, code, or ordinance. Furthermore, upon notice to the City, the Owner may construct Public Improvements specified in **Exhibit A** in advance of City completion. The City shall reimburse the Owner for accepted improvements at costs identified in **Exhibit B**. The Financial Security shall be eligible for release upon request by the Owner after inspection and acceptance of installed Public Improvements by the City;

WHEREAS, The Parties agree to the installation of those Public Improvements, associated cost estimates and fee schedules, and dedications or Cash-in-lieu payments for Public Improvement Construction set forth in **Exhibit B**. The Parties agree that the specifications for the Public Improvements delineated in **Exhibit A and B** (including without limitation) timing of

commencement or completion, specific locations of the easements and points of beginning/points of termination of easements, roads and water or sanitary sewer lines, road width, and/or water or sanitary sewer line sizes, may be administratively modified by separate agreement of both Parties without the requirement of Cheyenne City Council hearings or approvals. Administrative approval of such modifications shall not be unreasonably withheld, conditioned, or delayed; and

WHEREAS, the parties desire to enter into this Agreement to satisfy the above condition of approval.

NOW, THEREFORE, for and in consideration of the mutual promises, covenants, and agreements herein set forth, the parties agree as follows:

1. The Owner shall construct and install, at its sole expense, all the Improvements, except any improvements identified on Exhibit A as Cash-in-lieu payments. The Owner shall pay to the City Cash-in lieu payments in the amount set forth on Exhibit A, if any. Such cash- in-lieu shall be paid prior to the issuance of any Certificates of Occupancy.

2. All Improvements shall be constructed in compliance with the following:

- a. All documents submitted prior to or at the time of approval of the Case;
- b. All laws of the United States, State of Wyoming, and the City and its various agencies, affected special districts and/or servicing authorities; and
- c. Such other designs, drawings, maps, specifications, sketches, and other matter submitted to and approved by any of the above-stated governmental entities.

3. To secure and guarantee performance of its obligations as set forth herein, the Owner agrees that there shall be no conveyance, sale, or transfer of title of all or any portion of the Property nor shall certificate of occupancy be issued until improvements and/or cash-in-lieu has been received and approved by the City certifying that the Owner has satisfied any and all terms, conditions, notes, and restrictions set forth on the mylar or any supporting document(s) approved as part of the Case that must be completed by the Owner prior to the issuance of a Certificate of Occupancy, including, without limitation the satisfactory completion of the Improvements or the posting of a Guarantee, or cash-in-lieu for such completion.

4. The Owner and Holder of a Deed of Trust hereby consent and authorize the City to enter onto the Property to construct, install, maintain, and/or replace all or any portion of the Improvements required by the Case. No Guarantee will be accepted for Improvements that lie outside of the Property unless the property owner grants an acceptable easement to the City. The Owner and the Holder of a Deed of Trust hereby unconditionally waive and release the City from any and all claims or other legal liability that arise out of or are attributable to constructing, installing, maintaining and/or replacing the Improvements. This consent, waiver and release extends to the City

Improvements Agreement
Page 3 of 5

Notary Public

Holder of a Deed of Trust

Elevations Credit Union

By: _____
Paul Watkins, Vice President

STATE OF)
) ss
CITY OF)

The foregoing instrument was acknowledged before me this _____ day of _____, 2024, by Paul Watkins as Vice President of Elevations Credit Union.

Witness my hand and official seal. My commission expires:

Notary Public

City of Cheyenne, State of Wyoming

(SEAL)

By: _____
Patrick Collins, Mayor

ATTEST:

Kristina F. Jones, City Clerk

STATE OF)
) ss
CITY OF)

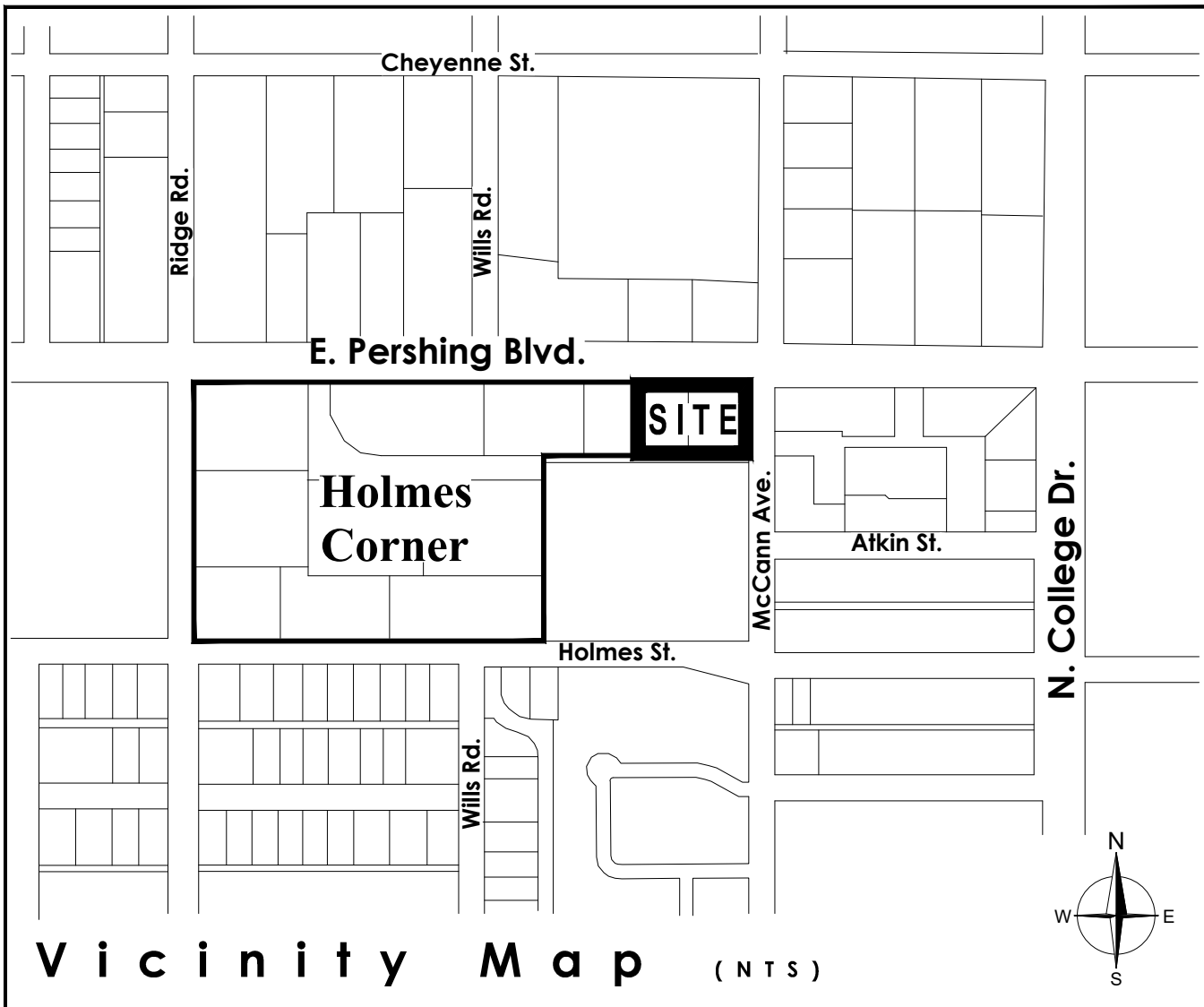
The foregoing instrument was acknowledged before me this _____ day of _____, 2024, by Patrick Collins as Mayor of the City of Cheyenne, Wyoming.

Witness my hand and official seal. My commission expires:

Notary Public

NOTE: ALL WORK INVOLVING CONSTRUCTION WITHIN THE CITY OF CHEYENNE, INCLUDING WATER AND SANITARY SEWERS AND APPURTENANCES, ARE SUBJECT TO THE FINAL APPROVAL AND ACCEPTANCE TO THE CITY OF CHEYENNE ENGINEER AND THE CITY OF CHEYENNE BOARD OF PUBLIC UTILITIES.

WORK SHALL BE GOVERNED BY: CITY OF CHEYENNE AND BOARD OF PUBLIC UTILITIES CONSTRUCTION SPECIFICATIONS AND STANDARD DRAWINGS (CURRENT EDITION).



Legal: Lot 9, Block 1, Holmes Corner
Owner: Healthworks
Mailing: 2508 E. Fox Farm Rd., 1A
Cheyenne, WY 82007
Street: TBD E. Pershing Blvd.
Zoning: MUB (Cheyenne)
Use: Vacant

Proposed Drainage Swale per Civil Plans
(Any required easements will be created
via separate instrument concurrently with
the EPR process)

Approx. Limit of Disturbance: Reseed disturbed areas
per Note 2 (Native Seed) on Landscape Plan

Ex. Drainage Pan to Remain

Site Plan Legend

	Proposed Concrete Pavement		Transformer (6' x 7' Pad)		Grease Trap per Architect; Install Clean-Outs as Req'd
	Proposed Asphalt Pavement		ADA Ramp		Parking Lot Light Fixture (See Lighting Plan)
	Proposed Road Base		Bike Racks per Sheet 3		
	Proposed Masonry Wall - Match Bldg.				

Site Plan

Notes

- Base Information:** Boundary and base information, including plat information, is per Steel Surveying. Underground utilities as shown are not guaranteed to be accurate. Off-site base information, including lane stripes in Pershing Blvd. and curb & gutter on opposite sides of McCann & Pershing were digitized from aerial photography.
- Ownership & Maintenance:** Site improvements shown on this drawing are to be owned and maintained by the Owner or Assigns.
- Architecture:** Restaurant building is per R4 Architects, 2023. See Building Elevations for compliance with UDC Section 6.7, trash enclosure design, and height warning bar.
- Grading, Drainage, & Utilities:** Grading, drainage, and utility design provided by Lovas Engineering, P.C., may be adjusted during the construction permitting process following approval of this Site Plan without necessitating its revision. Refer to Building Mechanical drawings for wet utility services entering buildings.

- Vehicular Access:** The existing access at McCann Avenue is proposed to remain, except as modified above. No additional right of way dedication is proposed. Vehicular access through the property will be permitted as required when Lots 9 & 10 are improved.
- Lighting:** Light locations shown are preliminary; pending updated lighting design by lighting & electrical consultant. Lighting plans will be submitted with the building permit application and will comply with UDC Section 6.4.
- Parking:** Parking is reserved for employees and patrons. Parking may be signed as "Reserved" or "Employees Only" at Owner discretion without amending this plan.
- Trash Vehicle Access:** Trash vehicles may enter the property from McCann, access the trash enclosure for front-loader use, back up, and exit the property to E. Pershing Blvd. via the 32' width mutual access easement gravel drive while facing forward.

Impervious Area Calculation

Lots 11 & 12 Combined	
Maximum Impervious Area (90% of ±39,057 SF)	35,151 SF
Building Footprint (outside edge of foundation)	±983 SF
Concrete (walks, curbs, piers, seating areas)	±22,417 SF
Asphalt	- 0 -
Retaining Wall Cap (Impervious)	±261 SF
Road Base	±243 SF
Total Impervious Area:	±23,904 SF (61.2%)

Contractors: The above quantities are for on-site improvements only and may be adjusted with civil construction plans. Refer to approved civil construction plans for final quantities, including in public ROW.

Open Space Approach

Per UDC §6.7.4, Open Space is required at 5% of the building footprint or a minimum of 47 SF. A covered outdoor seating area is proposed north of the building in conjunction with the walk-up service window. Outdoor furniture, seating, and/or decorative paving may be used to define the space. Other amenities may be installed at the Owner's discretion without amending this Site Plan.

Gross Courtyard Area:	±403 SF
Multiplier (Table 4-16):	x 1.3
Credited Open Space Area:	524 SF

Development Summary

Legal Description:
Property Address:
Property Owner:

Lots 11 & 12, Block 1, Holmes Corner
None Assigned
HEALTHWORKS
2508 E. Fox Farm Rd., Suite 1A
Cheyenne, WY 82007
Lot 12 - Drive-Through Coffee Service
Lot 11 - Commercial & Public Parking Facility
MUB - Mixed Use Business (City of Cheyenne)
Mixed Use - Commercial

Proposed Use:
Existing / Proposed Zoning:
Land Use Plan Designation:

Lot 11 Area:
Lot 12 Area:
Total Project Area:

Building Footprint Area:
Floor Area Ratio (Lot 11):
Floor Area Ratio (Lot 12):

±940 SF
N/A
0.045 FAR

Parking Calculation

Required: 5 Sp. / 1,000 SF

+ 0.5 Sp. / Employee @ Max Shift

(overlapping shifts of 10 employees ea.)

Minimum Parking Permitted:

Maximum Parking Permitted:

Proposed Parking

5 Sp. / 1,000 SF	5 Sp.
+ 0.5 Sp. / Employee @ Max Shift	20 x 0.5 = 10 Sp.
(overlapping shifts of 10 employees ea.)	
Minimum Parking Permitted:	15 Sp.
Maximum Parking Permitted:	19 Sp.
Proposed Parking	15 Sp.
	+ Bike Parking
	(total includes 1 ADA sp.)

Sheet Index

- Site Plan
- Landscape Plan
- Site & Landscape Plan Details

Exhibit A



Estimated Quantities in Pershing ROW

Asphalt Removed & Replaced	±3,027 SF
24" Concrete Curb Removed & Replaced	±306 LF
6" Width Concrete Sidewalk (attached / detached)	±1,862 SF
Landscaped Area (north of walk)	±2,008 SF
Reset School Zone Flashing Light	1 Ea.
Reset Ex. Fire Hydrant	2 Ea.
ADA Ramp / Crossing @ McCann	

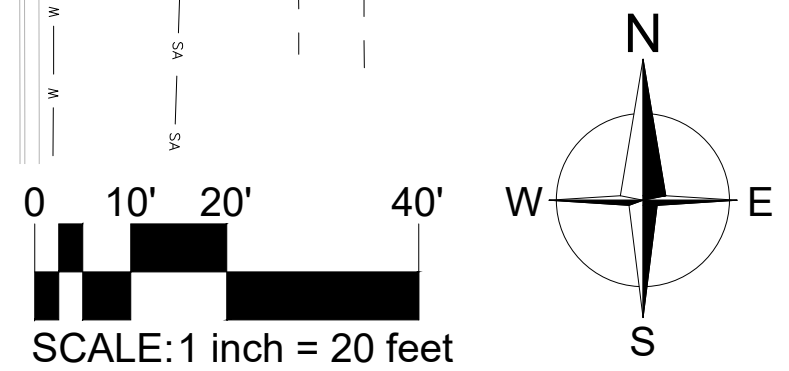
Note: Fee-In-Lieu improvements (shown as red) are schematic and intended for estimating purposes only.

Decal Lane @ 12' Width
Future Curb & Gutter
Remove Ex. Curb & Gutter
Approx. Limits of Work

Legal: Lot 5, Block 1, Pershing Marketplace 2nd Filing
Owner: PER CO TWO, LLC
Mailing: POB 1007
Cheyenne, WY 82003
Street: 300 Pershing Blvd.
Zoning: MUB (Cheyenne)
Use: Ret. / Comm.

Legal: Lot 1, Block 1, Pershing Marketplace 3rd Filing
Owner: Pershing Partners, LLC
Mailing: POB 1007
Cheyenne, WY 82001
Street: N/A
Zoning: MUB (Cheyenne)
Use: Parking

Legal: Lot 2, Block 1, Pershing Marketplace 3rd Filing
Owner: Pershing Partners, LLC
Mailing: 2120 Carey Ave.
Cheyenne, WY 82001
Street: N/A
Zoning: MUB (Cheyenne)
Use: Stormwater Detention



Land Planning
SITE & SUBDIVISION DESIGN
ZONING / LANDSCAPE ARCHITECTURE

PALMA

Dutch Bros. at Holmes Corner
SITE PLAN
L11-12, B.1, Holmes Corner, Cheyenne, WY

DR Holdings, LLC
Attn: Mr. Tom Froy
2039 S. Timberline Rd.,
307-635-0260 | Wyo@DutchBros.com

Prepared For:
Dutch Bros.

Project No:
23005

Sheet Title:
Site Plan

Date:
12/7/2023

Sheet:
1 of 3

2300GDR-SitePlan-Rev'd.dwg, 12/07/2023 11:19 AM, LRM
THIS DOCUMENT IS AN INSTRUMENT OF PROFESSIONAL SERVICE PREPARED FOR THIS PROJECT. PALMA LAND PLANNING, LLC SHALL BE HELD HARMLESS AND RELEASED FROM LIABILITY ARISING FROM MODIFICATION AND/OR REUSE BY OTHERS. DO NOT BE OR BUILD FROM DRAWINGS NOT STAMPED AND SIGNED BY A LICENSED LANDSCAPE ARCHITECT.

Plant List & Landscape Point Totals

Canopy Trees

Code	Quantity	Botanic Name	Common Name	Mature Ht x Spd	Condition	Planting Size
GLTR	1	Gleditsia tricanthos	Shademaster	20' x 35'	B + B	2" Caliper
QUIMA	3	Quercus macrocarpa	Burr Oak	70' x 50'	B + B	2" Caliper
ULMO	4	Ulmus x 'Morton'	Accolade Elm	50' x 30'	B + B	2" Caliper
[4]	10	Street Trees				
[6]	2	Street Trees				
2	2	On-Site @ ≥ 30' Ht				

Coniferous Trees

Code	Quantity	Botanic Name	Common Name	Mature Ht x Spd	Condition	Planting Size
PIHE	2	Pinus heldreichii var. leucodermis	Bosnian Pine	25' x 15'	#20 Cont.	5' Ht
2	2	Total Con. Trees				
2	2	On-Site @ < 30' Ht				

Ornamental Trees

Code	Quantity	Botanic Name	Common Name	Mature Ht x Spd	Condition	Planting Size
SYRE	3	Syringa reticulata	Japanese Tree Lilac	15' x 12'	#20 Cont.	5' Ht
3	3	Total Orn. Trees				
3	3	On-Site @ < 30' Ht				

Deciduous Shrubs

Code	Quantity	Botanic Name	Common Name	Mature Ht x Spd	Condition	Planting Size
PHOP	8	Physocarpus opulifolius	Native Ninebark	6' x 5'	Cont.	#5
RHTA	10	Rhus trilobata 'Autumn Amber'	Autumn Amber 3-Leaf Sumac	1.5' x 8'	Cont.	#5
18	18	Total Dec. Shrubs				

Evergreen Shrubs

Code	Quantity	Botanic Name	Common Name	Mature Ht x Spd	Condition	Planting Size
JUSQ	4	Jun. squamata 'Blue Star'	Blue Star Juniper	3' x 5'	Cont.	#5
JUST	18	Jun. sabina 'Tamariscifolia'	Tammy Juniper	3' x 6'	Cont.	#5
22	22	Total Evg. Shrubs				

Ornamental Grasses

Code	Quantity	Botanic Name	Common Name	Mature Ht x Spd	Condition	Size
BOGR	49	Boutelle gracilis 'Blonde Ambition'	Blue Grama	3' x 3'	Cont.	#1
CAAC	49	Calamagrostis canadensis	Karl Foerster Feather	5' x 2'	Cont.	#1
HESE	30	Helictotrichon sempervirens	Feather Reed Grass	3' x 3'	Cont.	#1
128	128	Total Orn. Grasses				

Other

Steel Edging:	±173 LF
Landscape Mulch:	±3,408 SF
Native Seed:	±11,745 SF (on site; right of way not calculated)

Required Pervious Area

Maximum Coverage:	90% (MUB Zoning)
Minimum Pervious Area:	10% of Lot Area
Lot Area:	±39,057 SF
0.10 x 39,057 SF:	3,906 SF

Provided Pervious Area Calculation:

Prop. Native Turf:	±11,745 SF
Prop. Irrigated Turf:	-0 SF
Prop. Shrub Beds:	±3,408 SF
Site Total:	±15,153 SF (39.0%)

Living Coverage @ Maturity:

75% of Pervious Area:	0.75 x 15,153
Required:	11,365 SF

Provided:

Prop. Native Turf:	±11,745 SF
Prop. Dec. Shrubs:	NC*
Prop. Evg. Shrubs:	NC*
Prop. Per. / Orn. Grasses:	NC*
Total Landscaped Area:	> 75%
(* NC = Not Calculated; Native Turf alone exceeds req.)	

Landscape Calculations per UDC §6.3.4

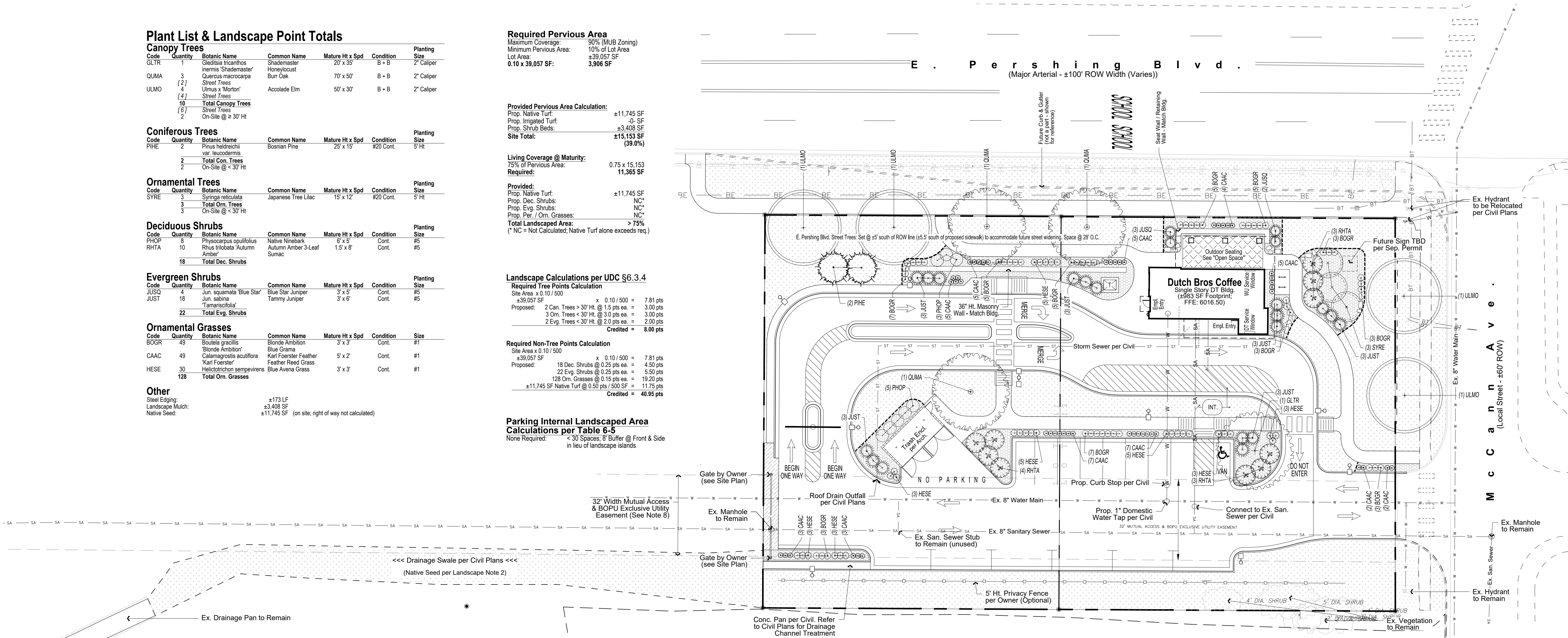
Required Tree Points Calculation	
Site Area x 0.10 / 500	x 0.10 / 500 = 7.81 pts
±39,057 SF	
Proposed:	
2 Can. Trees > 30' Ht @ 1.5 pts ea.	= 3.00 pts
3 Orn. Trees > 30' Ht @ 3.0 pts ea.	= 9.00 pts
2 Evg. Trees < 30' Ht @ 2.0 pts ea.	= 4.00 pts
Credited =	6.00 pts

Required Non-Tree Points Calculation

Site Area x 0.10 / 500	x 0.10 / 500 = 7.81 pts
±39,057 SF	
Proposed:	
18 Dec. Shrubs @ 0.25 pts ea.	= 4.50 pts
22 Evg. Shrubs @ 0.25 pts ea.	= 5.50 pts
128 Orn. Grasses @ 0.15 pts ea.	= 19.20 pts
±11,745 SF Native Turf @ 0.50 pts / 500 SF	= 11.75 pts
Credited =	40.95 pts

Parking Internal Landscaped Area Calculations per Table 6-5

None Required:	< 30 Spaces; 8' Buffer @ Front & Side in lieu of landscape islands
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Landscape Plan

LANDSCAPE NOTES

- ALL PLANT MATERIALS SHALL BE IN ACCORDANCE WITH ANA SPECIFICATIONS FOR NUMBER ONE GRADE.

- IRRIGATED TURF AND NATIVE SEED AREAS:

IRRIGATED TURF AREAS, SOD WITH KORBLY SOD "XERISCAPE TURF BLEND" OR APPROVED EQUAL. (CONTAINS 80% TALL FESCUE AND 20% KENTUCKY BLUEGRASS).

NATIVE SEED DRYLAND MIX. REFER TO "PRE-APPROVED DRYLAND MIX" PER UDC APPENDIX G-3. MOW NATIVE SEED AREAS SEASONALLY TO A HEIGHT OF 6" FOLLOWING ESTABLISHMENT. DO NOT ALLOW TYPICAL HEIGHT TO EXCEED 12" IN R.O.W. AND 18" ON PRIVATE PROPERTY.

- ALL SHRUB BEDS SHALL BE IRRIGATED WITH AUTOMATIC DRIP IRRIGATION SYSTEM OR ACCEPTABLE ALTERNATIVE. THE IRRIGATION SYSTEM IS TO BE ADJUSTED TO MEET THE NEEDS OF THE INDIVIDUAL PLANT MATERIAL. GENERALLY, TREES PLANNED FOR DRIP IRRIGATION SHOULD HAVE A MINIMUM OF 2 EMITTERS OR BUBBLERS PLACED ON OPPOSITE SIDES OF THE STEM OR DRIP TUBING RINGS (PREFERRED) WITH A MINIMUM OF 4 INLINE EMITTERS. ALL DRIP IRRIGATION SHOULD BE PLACED ON TOP OF THE ROOT BALL. EACH TREE SHOULD BE WATERED TWICE PER WEEK AT A RATE OF 20 GALLONS PER CYCLE DURING THE GROWING SEASON AND ONCE PER MONTH AT A RATE OF 20-30 GALLONS DURING THE DORMANT SEASON. HAND WATERING WILL BE NECESSARY DURING THE DORMANT SEASON. SHRUBS, PERENNIALS AND ORNAMENTAL GRASSES SHOULD HAVE 1-2 EMITTERS OR BUBBLERS PER PLANT AND SHOULD BE WATERED TWICE PER WEEK AT A RATE OF 5-10 GALLONS PER WATERING.

TREES PLANTED IN DRYLAND SEED AREAS SHALL RECEIVE DRIP IRRIGATION AS PER ABOVE.

- THE LANDSCAPE IRRIGATION SYSTEM MUST BE APPROVED BY THE CITY OF CHEYENNE PRIOR TO THE ISSUANCE OF A BUILDING PERMIT.
- ALL TREES SHALL BE BAILED & BURLAPPED IN A ROOT CONTROL BAG OR CONTAINERIZED. INSTALL PER DETAIL THIS SHEET. COORDINATE INSTALLATION ON ENGINEERED SLOPES WITH CIVIL ENGINEER. IN THE EVENT OF A CONFLICT, NOTIFY LANDSCAPE ARCHITECT.
- ALL SHRUB BEDS SHALL RECEIVE 3/4" DIAMETER (MINIMUM) ROUNDED RIVER ROCK COBBLE MULCH (ASSORTED COLORS) OR APPROVED EQUAL TO A MINIMUM DEPTH OF 3" AT POST-CONSTRUCTION ABOVE TYPAR 3301 (3 OZ.) OR APPROVED EQUAL WEED BARRIER FILTER FABRIC. COBBLE SIZE MAY BE INCREASED, AND / OR SHREDDED WESTERN CEDAR ("GORILLA HAIR") MAY BE SUBSTITUTED, AT OWNER'S SOLE DISCRETION. PLACE GORILLA HAIR WITHIN 6" OF DISH OF TREES, SHRUBS, ORNAMENTAL GRASSES, AND PERENNIALS.
- ALL SHRUB BEDS SHALL RECEIVE 0.75" DIAMETER (MINIMUM) ROUNDED RIVER ROCK COBBLE MULCH (ASSORTED COLORS) OR APPROVED EQUAL TO A MINIMUM DEPTH OF 3" AT POST-SETTLING ABOVE TYPAR 3301 (3 OZ.) OR APPROVED EQUAL WEED BARRIER FILTER FABRIC (NOT IMPERMEABLE PLASTIC SHEETING). DO NOT COMPACT MULCH. COBBLE SIZE MAY BE INCREASED AT THE OWNER'S SOLE DISCRETION.
- SEPARATE ALL AREAS RECEIVING MULCH FROM IRRIGATED TURF AND NATIVE TURF AREAS WITH 6" ROLLTOP STEEL EDGING OR APPROVED EQUAL.
- LOCATE ALL UTILITIES PRIOR TO PLANTING.
- INSTALL TREES SUCH THAT ROOT PITS ARE OUTSIDE OF WATER AND SANITARY SEWER EASEMENTS. A MINIMUM OF 10' CLEAR OF WATER AND SEWER LINES, AND 4' CLEAR OF GAS AND STORM SEWER LINES. INSTALL SHRUBS SUCH THAT ROOT PITS ARE 4' CLEAR OF WATER AND SANITARY SEWER LINES AND NOT DIRECTLY ABOVE STORM SEWER LINES.

- TREE UTILITY SEPARATIONS SHALL NOT BE USED AS A MEANS OF AVOIDING THE INSTALLATION OF PLANT MATERIALS SHOWN ON THIS PLAN. DEVELOPER SHALL ENSURE THAT THE LANDSCAPE PLAN IS COORDINATED WITH THE PLANS DONE BY OTHER CONSULTANTS SO THE PROPOSED GRADING, STORM DRAINAGE, OR OTHER CONSTRUCTION NEITHER CONFLICT WITH, NOR PRECLUDE INSTALLATION AND MAINTENANCE OF, LANDSCAPE ELEMENTS SHOWN.
- THE LANDSCAPE INSTALLATION CONTRACTOR IS RESPONSIBLE FOR ALL SOIL TESTING REQUIRED.
- THE SOIL IN ALL LANDSCAPE AREAS SHALL BE THOROUGHLY LOOSENED TO A DEPTH OF NOT LESS THAN EIGHT INCHES (8") BELOW FINAL GRADE. AMENDMENTS SHALL BE THOROUGHLY INCORPORATED INTO THE SOIL OF ALL LANDSCAPE AREAS TO ACHIEVE A MINIMUM 3% ORGANIC MATERIAL AND MAXIMUM SALINITY LEVEL OF 1.0 MILLIOMHS PER CENTIMETER IN THE TOP SIX INCHES (6") OF THE SOIL PROFILE (CHEYENNE UDC 6.3.7.b).
- TO THE MAXIMUM EXTENT FEASIBLE, TOPSOIL REMOVED FOR CONSTRUCTION ACTIVITY SHALL BE CONSERVED FOR LATER USE ON AREAS REQUIRING LANDSCAPING.
- MINOR CHANGES IN SPECIES AND PLANT LOCATIONS MAY BE MADE DURING CONSTRUCTION, AS REQUIRED BY SITE CONDITIONS OR PLANT AVAILABILITY. OVERALL QUANTITY, QUALITY, AND DESIGN CONCEPT SHALL REMAIN CONSISTENT WITH APPROVED PLANS. IN THE EVENT OF CONFLICT WITH THE QUANTITIES INCLUDED IN THE PLANT LIST, SPECIES AND QUANTITIES ILLUSTRATED ON THIS PLAN SHALL PREVAIL AND MUST BE PRE-APPROVED BY THE CITY'S DEVELOPMENT OFFICE.

- LANDSCAPE AND IRRIGATION SHALL BE INSTALLED PRIOR TO CERTIFICATE OF OCCUPANCY. TO SECURE A CONDITION OF OCCUPANCY WITHOUT LANDSCAPE AND IRRIGATION FULLY INSTALLED, REMAINING LANDSCAPE AND IRRIGATION TO BE INSTALLED SHALL BE SECURED WITH WITH AN ACCEPTABLE FORM OF SURETY TO THE CITY OF CHEYENNE FOR 125% OF THE VALUE OF THE LANDSCAPE PRIOR TO CERTIFICATE OF OCCUPANCY.
- THE APPLICANT, SUCCESSORS, AND ASSIGNS SHALL BE JOINTLY AND SEVERALLY RESPONSIBLE FOR THE REGULAR AND NORMAL MAINTENANCE OF ALL LANDSCAPE ELEMENTS SHOWN ON THIS PLAN. LANDSCAPE SHALL BE MAINTAINED FREE OF DISEASE, PESTS, WEEDS, AND LITTER. MULCH AND WEED BARRIER FABRIC SHALL BE REPLACED AS NECESSARY. LANDSCAPE ELEMENTS SUCH AS FENCES AND WALLS SHALL BE REPAIRED AND/OR REPLACED TO REMAIN STRUCTURALLY SOUND.
- PLANT MATERIALS EXHIBITING EVIDENCE OF INSECTS, DISEASE, AND OTHER DAMAGE SHALL BE APPROPRIATELY TREATED. DEAD TREES, SHRUBS, AND PERENNIAL PLANTS SHALL BE REPLACED WITHIN 30 DAYS IF POSSIBLE, OR BY JUNE 1 OF THE FOLLOWING GROWING SEASON.
- LEAVE PLANT IDENTIFICATION TAGS ON PLANT MATERIAL, TO BE REMOVED BY CITY FOLLOWING INSPECTION.

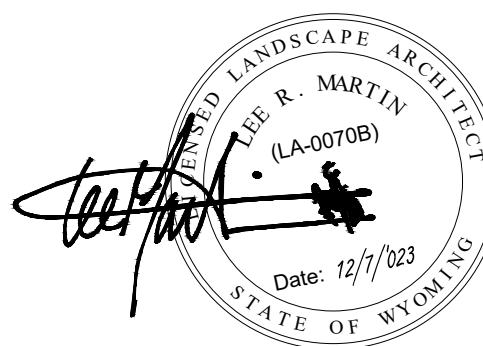
Legend

Proposed Mulch per Landscape Note 6	Parking Lot Lights per Lighting Plan
Proposed Native Turf per Landscape Note 2 / Dryland Seed Mix Specifications	6' x 7' Transformer Pad per Electrical
Temporary Road Base per Civil	Grease Interceptor per Mechanical; Install Clean-Outs as Req'd
Proposed Edging per Note 7	Bike Racks per Detail Sheet 3

0 10' 20' 40'

SCALE: 1 Inch = 20 feet

Refer to Details on Sheet 3



1775 Goodnight Trail | Suite 210
Cheyenne, Wyoming 82007
info@PalmaDesign.com | 307-996-6281

Land Planning
SITE & SUBDIVISION DESIGN
ZONING | LANDSCAPE ARCHITECTURE

PALMA

Dutch Bros. at Holmes Corner
SITE PLAN
L11-12, B.1, Holmes Corner, Cheyenne, WY

DB Holdings LLC
Attn: Mr. Nate Frary
2039 S. Timberline Rd.
307-659-0260 | Wyo@DutchBros.com

Prepared For:
DUTCHBROS

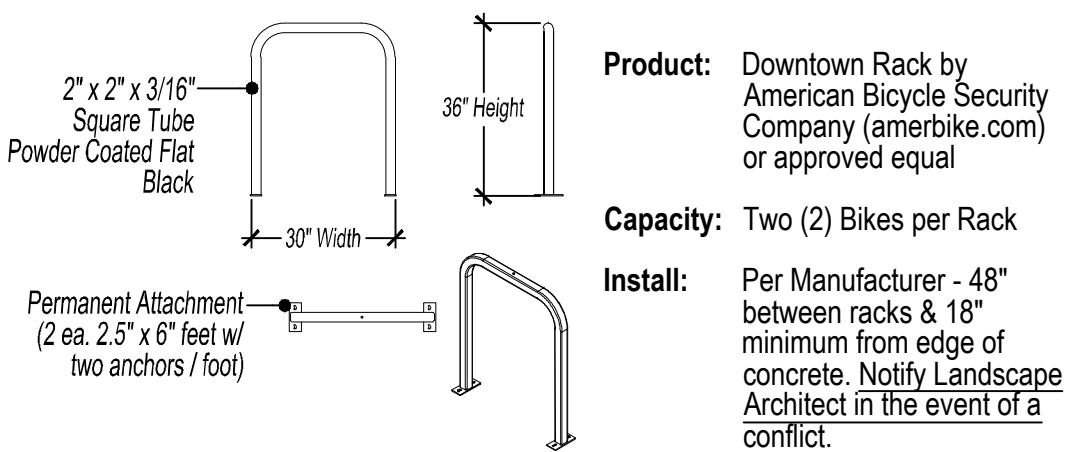
Project No:
23005

Sheet Title:
Landscape Plan

Date:
12/7/2023

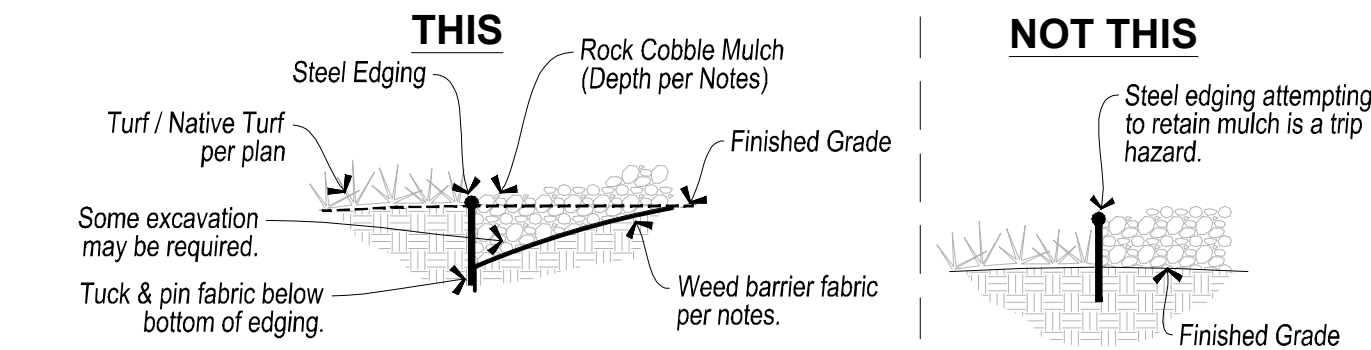
Sheet:
2 of 3

2300GDB-SitePlan-Rev.dwg and dwg - 12/07/2023 11:20 AM LRM
THIS DOCUMENT IS AN INSTRUMENT OF PROFESSIONAL SERVICE PREPARED FOR THIS PROJECT. PALMA LAND PLANNING, LLC SHALL BE HELD HARMLESS AND NOT BE RESPONSIBLE FOR ANY ERRORS, OMISSIONS, OR INADEQUACIES IN THE DESIGN OR CONSTRUCTION OF ANY PROJECT ARISING FROM MODIFICATION AND/OR REUSE BY OTHERS. DO NOT BID OR BUILD FROM DRAWINGS NOT STAMPED AND SIGNED BY A LICENSED LANDSCAPE ARCHITECT.



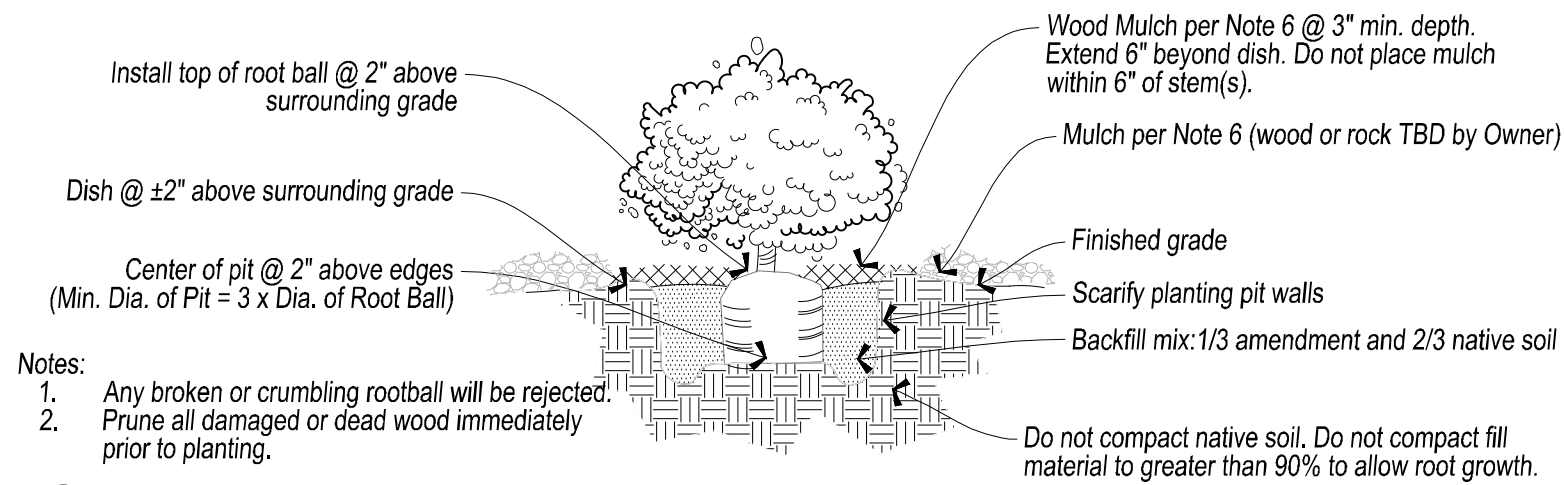
Bike Rack Detail

NTS



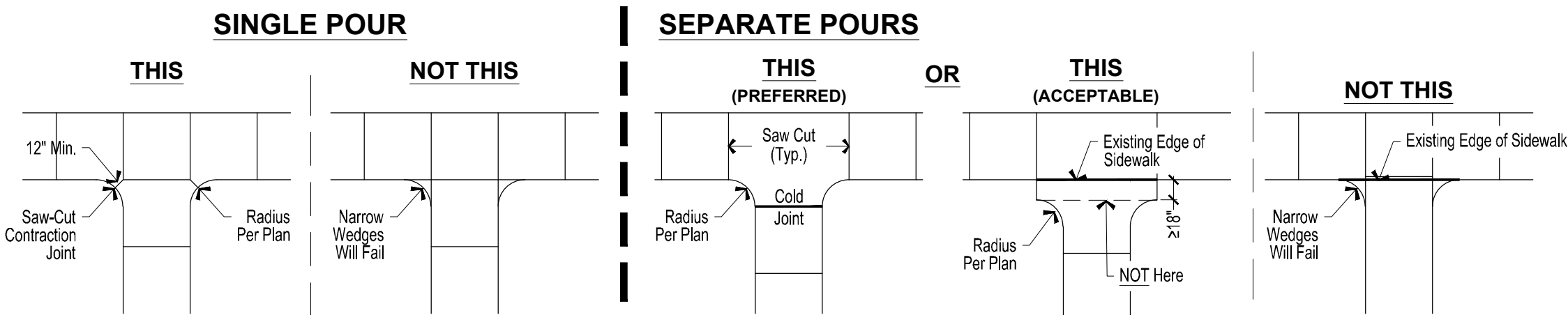
Steel Edging Installation Detail

NTS



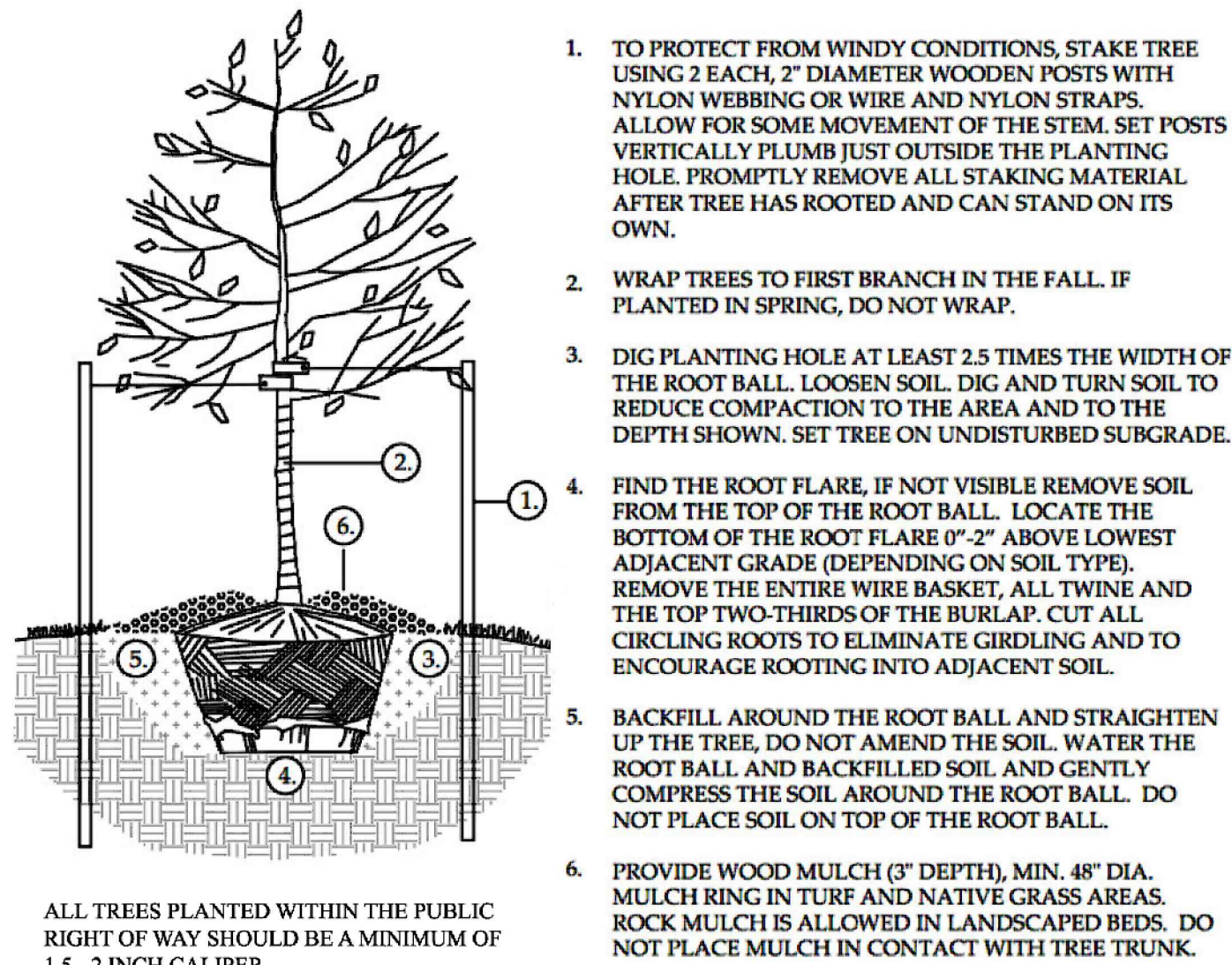
Shrub Planting Detail

NTS



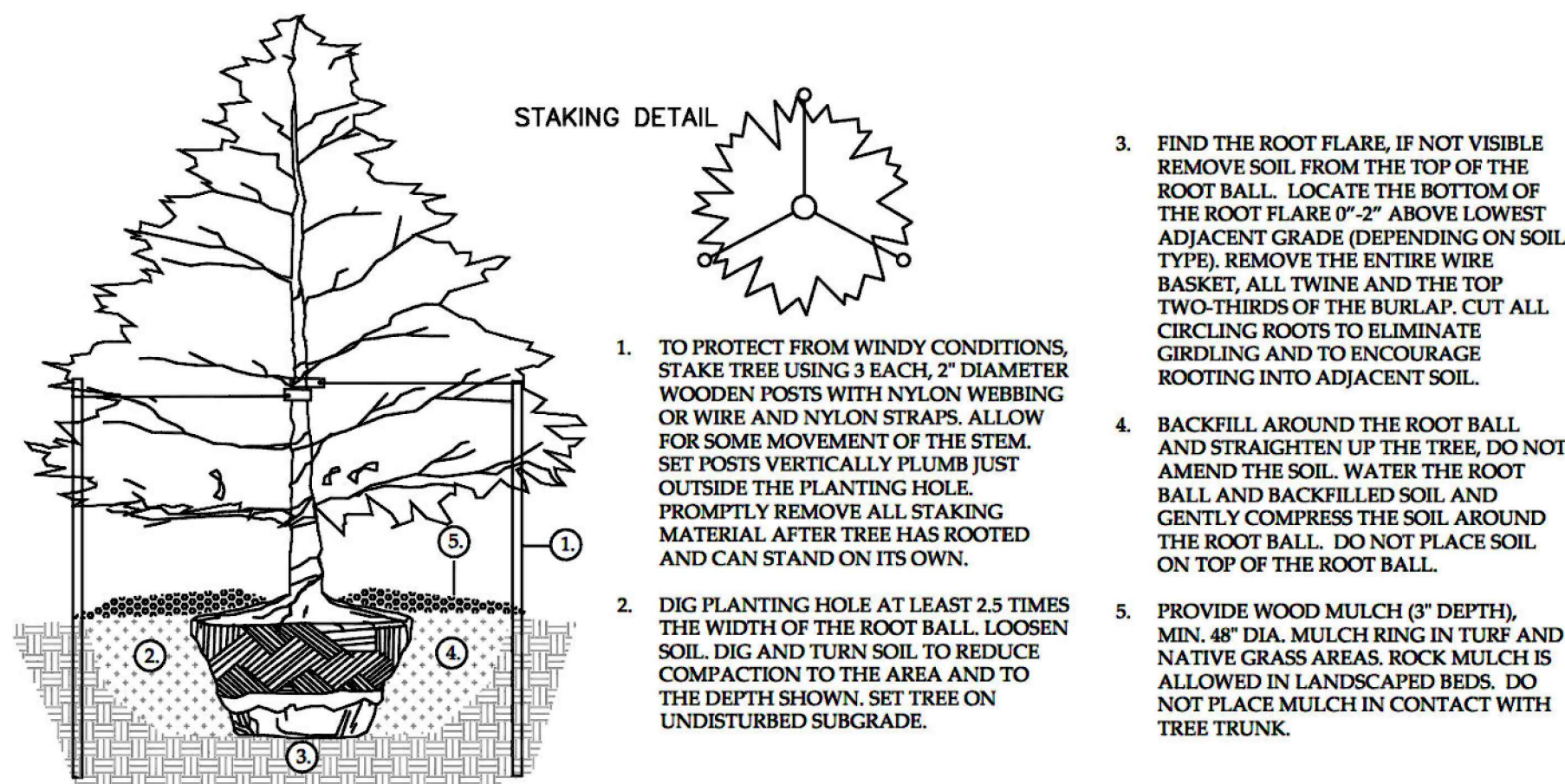
Sidewalk Intersection Detail

NTS



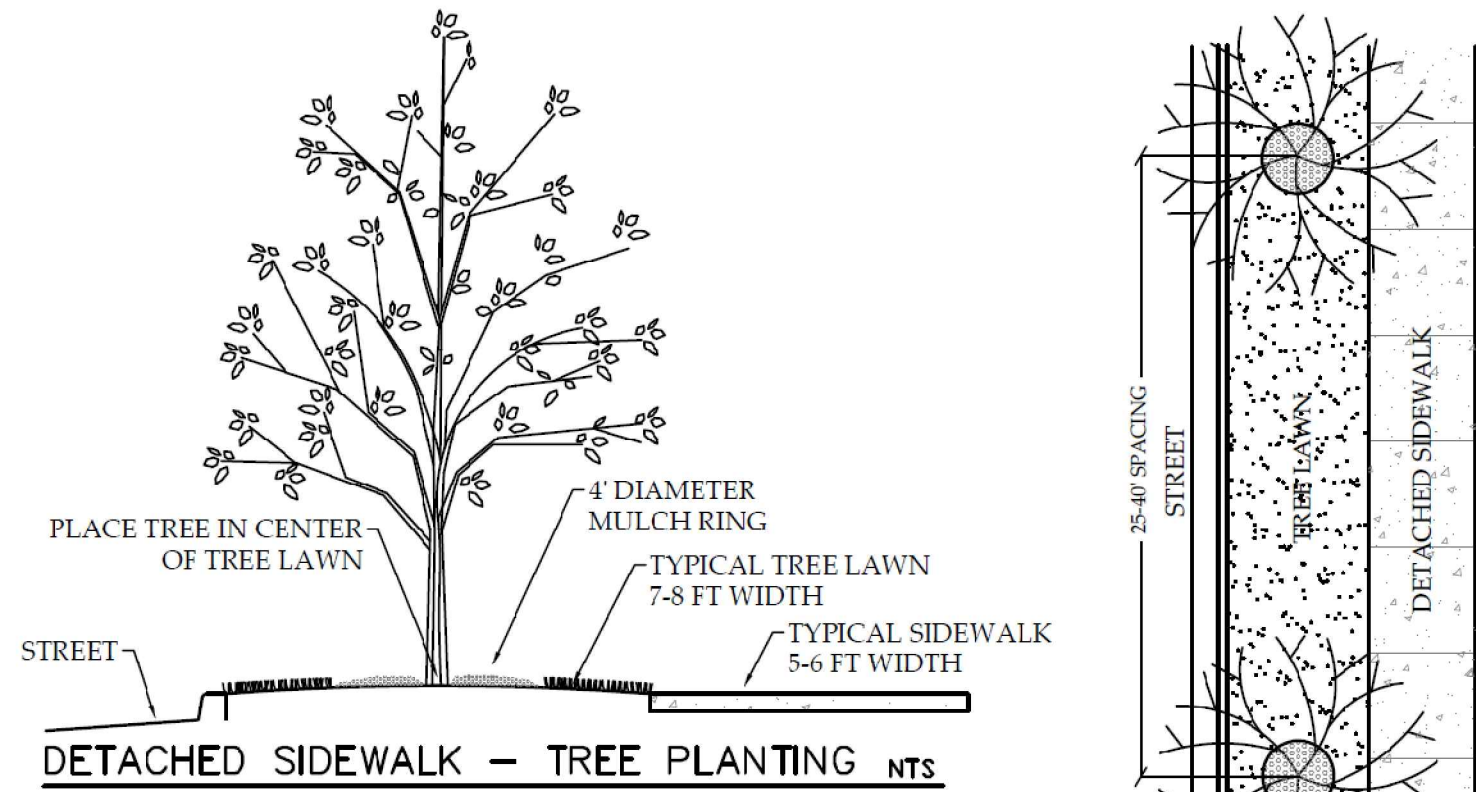
Deciduous Tree Planting Detail

(City of Cheyenne) NTS

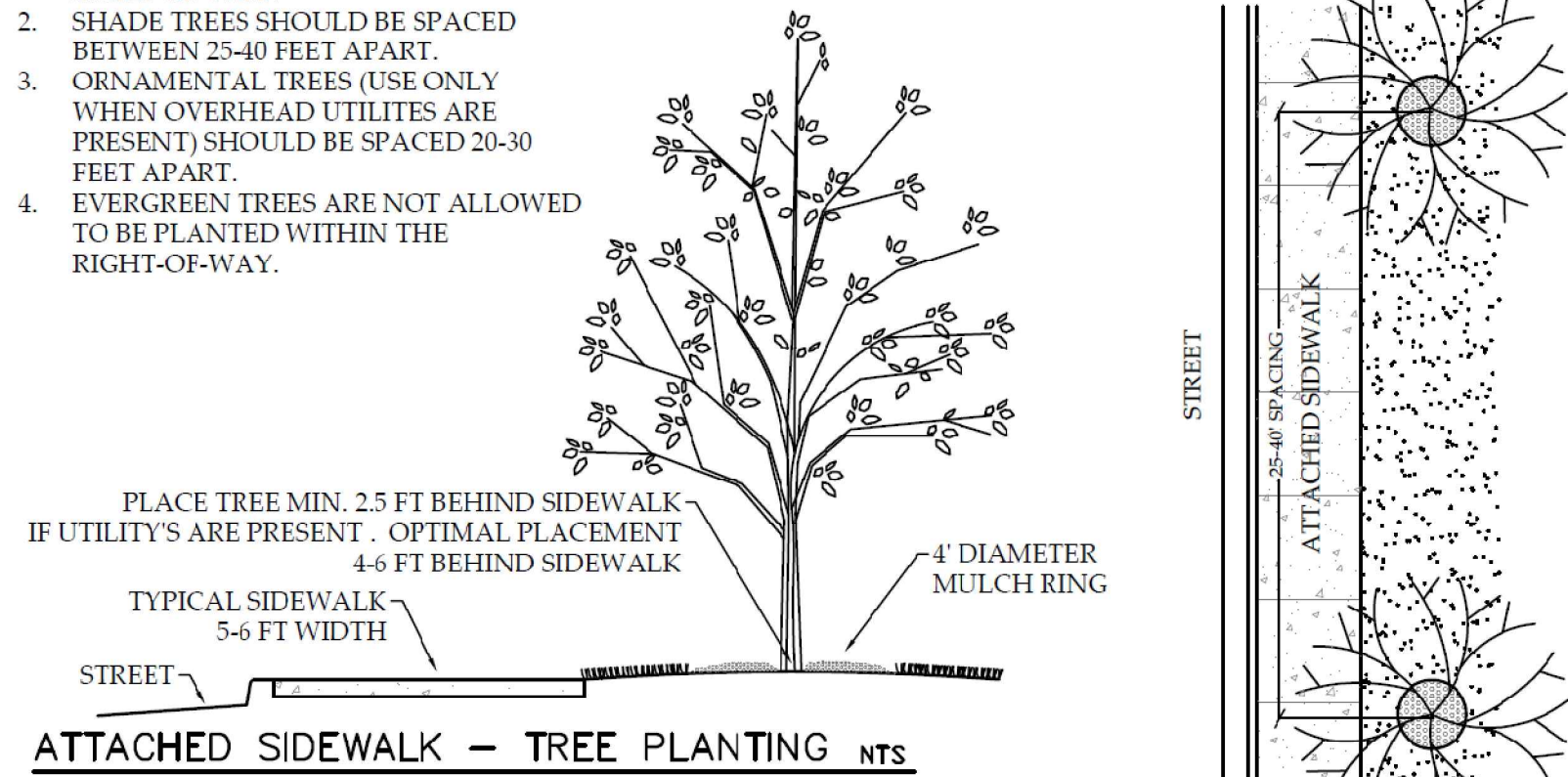


Evergreen Tree Planting Detail

(City of Cheyenne) NTS



1. A PERMIT (FREE OF CHARGE) FROM THE CHEYENNE URBAN FORESTRY DIVISION (637-6428) IS REQUIRED PRIOR TO PLANTING IN THE PUBLIC RIGHT-OF-WAY.
2. SHADE TREES SHOULD BE SPACED BETWEEN 25-40 FEET APART.
3. ORNAMENTAL TREES (USE ONLY WHEN OVERHEAD UTILITIES ARE PRESENT) SHOULD BE SPACED 20-30 FEET APART.
4. EVERGREEN TREES ARE NOT ALLOWED TO BE PLANTED WITHIN THE RIGHT-OF-WAY.



Street Tree Planting Details (Attached & Detached Walk Scenarios)

(City of Cheyenne) NTS



1775 Goodnight Trail | Suite 210
Cheyenne, Wyoming 82007
info@palmlandplanning.com | 307-996-9281

Land Planning
SITE & SUBDIVISION DESIGN
ZONING | LANDSCAPE ARCHITECTURE

PALMA

Dutch Bros. at Holmes Corner
SITE PLAN
L11-12, B1, Holmes Corner, Cheyenne, WY

D8 Holdings LLC
Attn: Mr. Nate Frary
2039 S. Timberline Rd.
307-659-0260 | Wyo@dutchbros.com

Prepared for:
DUTCHBROS

Project No.
23005

Sheet Title
Site & Landscape Plan Details

Date: 12/7/2023
3 of 3



Mrs. Cassie Pickett, P.E. – Senior Staff Engineer
City of Cheyenne Engineering Department
Via:

City of Cheyenne OpenGov Platform

DUTCH BROS COFFEE – DECEL LANE ESTIMATE (PUDC-23-75)

12/6/2023

Dear Mrs. Pickett,

In response to comment from the City Engineering Dept. during the EPR process for the above referenced project, below is a list of bid items for probable construction costs.

*It should be noted that opinions of probable construction costs rendered by Engineer represent our reasonable professional engineering opinion and furnished for general guidance. Engineer makes no representation, warranty, or guarantee, expressed nor implied, as to the accuracy of such opinions as compared to bid or actual costs.

Please note that civil design for the deceleration lane has not been completed at this time. The estimated quantities for civil infrastructure are based upon planimetric design by Palma Land Planning. Lovas Engineering, PC opinion of approximate construction costs have been derived using the following assumed key parameters:

- 6" asphalt over 8" Grading 'W' for all asphalt pavement (3" grading 'A' / 3" grading 'D')
- 277 LF type 'A' curb & gutter
- 275 LF saw cutting
- 110 CY unclassified excavation
- (1) 20' radius curb fillet
- (1) concrete ADA ramp with detectable warning plates

The estimate also includes estimated contractor fees such as bonds/insurance, mobilization, potholing utilities, force account, traffic control, stormwater management and construction management. The estimate is based on present value and does not account for inflation in construction materials or labor costs. The estimate does not include engineering, planning or consulting fees.

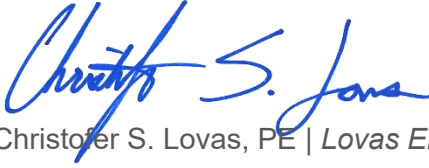
Engineer's Opinion of Approximate Construction Costs:

\$47,000.00

150% = \$70,500.00

If you have any questions or require additional information, please feel free to contact me directly.

Respectfully Submitted,



Christopher S. Lovas, PE | *Lovas Engineering, PC*